

Micronesia 2024 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in Micronesia during the year.

There were no credible reports of significant human rights abuses.

The government sometimes took steps to identify, investigate, prosecute, and punish officials who committed human rights abuses, but impunity was a problem.

Section 1. Life

a. Extrajudicial Killings

There were no reports the government or its agents committed arbitrary or unlawful killings during the year.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

Section 2. Liberty

a. Freedom of the Press

The law provided for freedom of expression, including for members of the press and other media, and the government generally respected this right. An independent media, an effective judiciary, and a functioning democratic political system combined to promote freedom of expression, including for media members.

b. Worker Rights

Freedom of Association and Collective Bargaining

Although federal law did not prohibit workers from joining unions, there were no unions. Most private-sector employment was in small-scale, family-owned businesses or in subsistence farming and fishing. No nongovernmental organizations focused on unions or labor matters.

Under the constitution citizens had the right to form or join associations and government employees could form associations to “present their views” to the government without being subject to coercion, discrimination, or reprisals. Federal law was mute on trade unions, collective bargaining, antiunion discrimination, and the right to strike.

Forced or Compulsory Labor

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Acceptable Work Conditions

Wage and Hour Laws

The Public Health and Environmental Protection Agency enforced occupational safety and health (OSH) standards. The Department of Justice's Division of Immigration and Labor enforced wage and hour laws for foreign workers, and the Department of Administrative Services was responsible for Micronesian workers. The government did not effectively enforce OSH or wage and hour standards, but the tax system monitored the minimum wage effectively through random audits. Penalties were commensurate with those for similar crimes but were rarely applied against violators. The number of labor inspectors was sufficient to enforce compliance, and inspectors had the authority to make unannounced inspections and initiate sanctions.

Approximately one-half of workers were in the informal economy, predominantly in subsistence agriculture and fishing, where wage, hour, OSH, and other labor laws and inspections did not apply.

Occupational Safety and Health

The law required that employers provide a safe workplace; implementing regulations were appropriate for the country's main industries. It was unclear if these provisions applied to part-time workers. OSH experts responded to workers' complaints but did not independently identify unsafe working conditions. Workers could remove themselves from situations that endangered health or safety without jeopardy to their employment.

Wage, Hour, and OSH Enforcement

The Public Health and Environmental Protection Agency enforced OSH standards. The Department of Justice's Division of Immigration and Labor enforced wage and hour laws for foreign workers, and the Department of Administrative Services was responsible for Micronesian workers. The government did not effectively enforce OSH or wage and hour standards, but the tax system monitored the minimum wage effectively through random audits. Penalties were commensurate with those for similar crimes but were rarely applied against violators. The number of labor inspectors was sufficient to enforce compliance, and inspectors had the authority to make unannounced inspections and initiate sanctions.

Approximately one-half of workers were in the informal economy, predominantly in subsistence agriculture and fishing, where wage, hour, OSH, and other labor laws and inspections did not apply.

c. Disappearance and Abduction

Disappearance

There were no reports of enforced disappearances by or on behalf of government authorities.

Prolonged Detention without Charges

The law prohibited arbitrary arrest and detention and provided for the right of persons to challenge the lawfulness of their arrest or detention in court. The government generally observed these requirements.

d. Violations in Religious Freedom

See the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

e. Trafficking in Persons

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or

Punishment

The law prohibited such practices, and there were no credible reports that government officials employed them.

b. Protection of Children

Child Labor

The law did not prohibit the worst forms of child labor. National and state laws did not establish a minimum age or prescribe limits on hours or occupations for employment of children. There were no reports of employment of children for wages, but children often assisted their families in subsistence farming and family-owned shops. Penalties were not commensurate with those for analogous serious crimes and penalties were rarely applied against violators. There was no significant presence of the worst forms of child labor.

Child Marriage

The subject of marriage was not legislated at the national level and in Yap. However, Kosrae, Chuuk and Pohnpei specified 18 years as the age of marriage for males, and 16 years for girls. For girls under 18 years of age, the consent of either parent was required in all three states. In Pohnpei and Chuuk, customary marriages were valid and could therefore be conducted without adherence to these minimum ages for marriage.

c. Protection to Refugees

There were no refugees or asylum seekers in the country.

Provision of First Asylum

The law did not provide for granting asylum or refugee status, and the government had no system for providing protection to refugees.

d. Acts of Antisemitism and Antisemitic Incitement

There was a very small Jewish community, and there were no known reports of antisemitic incidents.